BY SOMMER

SOVEREIGN ARCHITECTURE & INTELLECTUAL PROPERTY GOVERNANCE

Date: August 6, 2026
Location: Hellerup, Denmark
Ref: TRANSMITTAL-TONE-2026-01

CONFIDENTIAL & ATTORNEY-CLIENT PRIVILEGED COMMUNICATION
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TO:	Patent Prosecution Practice Group (Plougmann Vingtoft / Zacco / Patrade)
FROM:	Michael Sommer | Founder & Inventor of Record, BY SOMMER Sovereign Architecture <michael@bysommer.com>
SUBJECT:	Formal Intake & Priority Filing Instruction: TONE Sovereign Architecture Portfolio (Docket: TONE-2026-PCT-01)
PRIORITY TARGET:	Danish Patent & Trademark Office (DKPTO) National Priority Filing (~DKK 3,000–5,000)

Dear Patent Prosecution Team,

We are formally submitting the complete, publication-ready patent application package for the **TONE Architecture** (System and Method for Telemetry-Driven Active Inference, Zero-Knowledge Jurisdictional Compliance, and Autonomous Dividend Accrual). We request your formal intake review, prior art search validation, and preparation of the national priority filing before the Danish Patent and Trademark Office (DKPTO).

1. PORTFOLIO SCOPE & CLAIM ARCHITECTURE SUMMARY

The TONE invention spans physiological telemetry processing, zero-knowledge cryptographic compliance, and autonomous non-profit ledger mechanics. The application comprises **15 formal claims** (3 independent, 12 dependent) structured as follows:

Claim	Type	Technical Perimeter & Focus	Key Statutory / Technical Anchor
Claim 1	Independent	Biosecurity & Active Inference Circuit Breaker	Variational Free Energy divergence threshold ($L\Delta \geq 3.0$) → automated financial lock.
Claim 2	Independent	Location-Aware Zero-Knowledge Jurisdictional Matcher	Multi-tiered rule engine (EU IOSS < €150, Danish VAT 25%, Municipal ULEZ) with `cpr_zk_hash`.
Claim 3	Independent	Autonomous Non-Profit Surplus Ledger Engine	Daily increment calculation (Δsurplus = 2.30 DKK/day) with atomic Dec 10th payout epoch.
Claim 8	Dependent (1)	NemRefusion ZK Biosecurity Bridge	

Claim	Type	Technical Perimeter & Focus	Key Statutory / Technical Anchor
			Danish Sickness Benefits Act (Sygedagpengeloven — LBK nr 1293); GDPR Art. 9 insulated.
Claim 12	Dependent (2)	GDPR Recital 26 Identity Hashing	Explicit classification of `cpr_zk_hash` as pseudonymous under EU law.
Claim 15	Dependent (1)	Planetary Shield Interoperability	Pathogen transmission coefficient ($R_0 > 1.0$) cross-correlation with diagnostic production.

2. INTERNATIONAL PRIORITY & PROSECUTION ROADMAP

We request execution according to the following strict statutory timeline:

- **Milestone 1 (August 2026):** DKPTO National Priority Application filing (establishing Priority Date).
- **Milestone 2 (August 2027):** PCT International Application filing (via RO/DK, designating ISA/EPO) within the 12-month Paris Convention window.
- **Milestone 3 (February–March 2029):** Regional/National Phase Entries at EPO (31 months) and USPTO (30 months).

3. KEY LEGAL & DOCTRINE DEFENSE POINTS FOR COUNSEL REVIEW

During your intake review, we request particular focus on the following two prosecution strategies already embedded in the specification:

1. **EPO Art. 52(2)(c) Technical Character Defense:** The specification grounds all software logic in physical hardware sensors (HRV, core temperature, SpO_2) and tangible control outcomes (circuit breaker transaction locking). Please verify alignment with landmark decisions T 154/04, G 1/19, T 625/11, and T 1227/05.
2. **GDPR Article 9 & Health Information Act Compliance:** Claim 8 transmits strictly a binary incapacitation indicator (`IS_INCAPACITATED: true`) via ZK-proofs. Diagnostic string transmission (e.g., `SICKNESS_FEBRILE`) has been completely scrubbed to prevent regulatory liability under Danish Helbredsoplysningsloven.

4. TRANSMITTED ENCLOSURES & REPOSITORY INDEX

The following complete files are attached and accessible in the repository under `/patent/`:

- `PATENT_PORTFOLIO_HANDOFF.md` — Attorney Executive Summary & Intake Briefing
- `TONE_PATENT_EFILING_PACKAGE.md` — Complete USPTO/EPO E-Filing Ready Application
- `TONE_PATENT_SPECIFICATION.md` — Detailed Specification & Enablement
- `CLAIMS_DRAFT.md` — 15 Formal Claims Standalone Text
- `DIAGRAMS_DESCRIPTION.md` — Drawing Reference Manual

- `diagrams/FIG_1_System_Architecture.svg` through `FIG_9_HITL_Level_2_Override_Workflow.svg` — 9 High-Contrast SVG Vector Drawings with USPTO Badges

The full repository is available at: **github.com/MSDK0I/bysommer-sovereign-architecture** (private — access credentials provided separately).

5. COUNSEL ACTION CHECKLIST

Requested Actions for Patent Counsel

- ☐ Confirm receipt of this transmittal and all enclosed documents
- ☐ Conduct formal patentability search against CPC classes: G06F 21/62, G16H 40/67, G06Q 20/40, G06N 3/00
- ☐ Validate Claim 1 and Claim 8 novelty against identified prior art
- ☐ Review EPO Art. 52(2)(c) technical character defense and confirm landmark case applicability
- ☐ Verify GDPR Recital 26 classification of `cpr_zk_hash` as pseudonymous data
- ☐ Prepare DKPTO national priority application filing package
- ☐ Confirm filing fee schedule and estimated timeline for DKPTO priority application
- ☐ Advise on PCT international filing strategy (RO/DK, ISA/EPO designation)

Please confirm receipt of this transmittal and advise on your availability for a 30-minute intake alignment call next week.

Sincerely,

Michael Sommer
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Hellerup, Denmark
Attorney Docket: TONE-2026-PCT-01

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